



Office of Public Affairs
U.S. Department of Justice



Former CEO of Startup Software Company Sentenced for Payroll Tax Fraud Crimes

Friday, January 24, 2025

For Immediate Release

Office of Public Affairs

Defendant Did Not Pay More Than \$14M in Taxes to the IRS

A New Hampshire man was sentenced yesterday to two-and-a-half years in prison for willfully failing to pay more than \$14 million in payroll taxes and not filing personal tax returns.

According to court documents and statements made in court, Andrew Park, 49, of Bedford, was the co-founder and CEO of a startup technology company. Park was responsible for all financial matters related to the company, including for filing the company's quarterly employment tax returns and collecting and paying over Social Security, Medicare and income taxes withheld from the employees' wages to the IRS, as well as the matching Social Security and Medicare taxes the company owed.

From the company's founding in 2014 through the third quarter of 2021, Park withheld federal taxes from the wages of the company's employees but did not pay them over as required by law. He also did not pay over the portion of the employment taxes that the company owed. Park willfully failed to do so even though a payroll service company that he hired to process the employees' payroll regularly notified him that the taxes were due, and in more than one instance was notified by an employee that the amount paid to Social Security listed on her W-2 did not match what was reported by the Social Security Administration.

From 2013 through 2020, Park also did not file individual tax returns as required by law, despite the fact that he paid himself a salary of approximately \$250,000 each year.

In total, Park caused a tax loss to the IRS exceeding \$14 million.

In addition to the term of imprisonment, U.S. District Chief Judge Landya B. McCafferty for the District of New Hampshire ordered Park to serve three years of supervised release and to pay \$639,821.78 in restitution to the United States and a fine of \$15,000.

Acting Deputy Assistant Attorney General Karen E. Kelly of the Justice Department’s Tax Division and Acting U.S. Attorney John J. McCormack for the District of New Hampshire made the announcement.

IRS Criminal Investigation investigated the case.

Assistant Chief Eric Powers of the Tax Division and Assistant U.S. Attorney Matthew Hunter for the District of New Hampshire prosecuted the case.

Updated January 24, 2025

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Press Release Number: 25-108

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